

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT
HON. MASTER ALISON TESTA
HEARING ROOM B-FAMILY DIVISION

FILED
Electronically
JV24-00105
2024-01-29 04:38:07 PM
Alicia L. Lerud
Clerk of the Court
Transaction # 10128233

REPORTER: JAVS

CLERK: L. Reyes

Time: 09:00:00

Hearing Date: 1/26/2024

Case No. JV24-00104 JUVAB: EVAKAY BALDES

Filing Date: 1/23/2024

Case No. JV24-00105 JUVAB: ALEXIS CLARK

Filing Date: 1/23/2024

Event: PROTECTIVE CUSTODY - ZOOM

PETR WASHOE COUNTY HUMAN SERVICES AGENCY - WCHSA

☒ATTY Jeffery A. Briggs, Esq. - video

☒PD Kristine Riley, Esq. - video

☒DA Tyler Beach, Esq. - video

MINR EVAKAY BALDES - @1412997 - NP

☒NP FATH JUSTIN BALDES - @1413000

DOB: 10/19/2009 (14)

☒MOTH MEGAN MCCAFFERTY - video

ICWA Status: No Data Entered

Tribal Affiliation: None

MINR ALEXIS CLARK - @1413001 - NP

☒FATH DONOVAN CLARK - video

DOB: 2/24/2014 (9)

ICWA Status: No Data Entered

Tribal Affiliation: None

Related Cases in Contexte:

FV16-01710 - MEGAN MCCAFFERTY VS DONOVAN CLARK (UM)

FV16-01822 - CUST: DONOVAN CLARK VS MEGAN MCCAFFERTY (D5)

JV24-00105 - JUVAB: ALEXIS CLARK

TPO16-01555 - MEGAN MCCAFFERTY VS. DONOVAN CLARK (DM)

TPO16-01795 - MEGAN MCCAFFERTY VS. DONOVAN CLARK (DM)

Social Worker: Ryan Williamson & Tyler McHenry (observing) - video

Parents advised of legal right to counsel. [] Waived [X] Requested counsel

REASON FOR HEARING:

Counsel Briggs: Requested to be appointed to represent the children.

The Court ordered Northern Nevada Legal Aid appointed to represent the children.

Counsel Riley: Present as a courtesy on behalf of Ms. McCafferty.

Counsel Pearce: Present as a courtesy on behalf of Mr. Clark.

The Court noted that Mr. Baldes, father to Evakay, was not present and inquired whether his appearance was anticipated.

Counsel Beach: The Agency can provide testimony regarding diligent efforts to locate Mr. Baldes.

Ms. McCafferty: Confirmed that she was appearing from Washoe County.

Ryan Williamson, Megan McCafferty, and Donovan Clark were sworn by the clerk.

Counsel Beach: The parties have reached a stipulation as to Mr. Clark; however, Ms. McCafferty will be contesting the matter. Requested that Ms. Williamson provide testimony regarding diligent efforts to locate Mr. Baldes then can proceed as to Mr. Clark.

No objections were heard from the parties.

Ms. Williamson direct examined by counsel Beach and testified that Justin Baldes is the father to Evakay; Ms. McCafferty identified Mr. Baldes as the father to Evakay, and there is a child support action that also identifies him as the father; Ms. McCafferty advised the Agency that Mr. Baldes lives in Wyoming but did not have his contact information; a diligent search was conducted with this limited information, which only yielded a last known address; notice of today's hearing was mailed to that address; the Agency also attempted to obtain a copy of the child support order but was directed to submit further documentation; Ms. McCafferty reported that there is a possibility of Native American heritage

The clerk's minutes are not an order of the Court. They may be altered, amended, or superseded by a written order. If the matter was recorded via JAVS, a copy of the proceeding may be requested through the Second Judicial District Court Resource Center located at 1 South Sierra Street, Reno, NV, 89501. If the matter was reported via Court Reporter, a transcript must be requested directly from the Court Reporter.

as she believes that Mr. Baldes is enrolled in a tribe; Ms. McCafferty was unable to provide any additional information, but the Agency will continue looking into this.

Counsel Pearce: Wished to note that Mr. Clark had not yet been canvassed by the Court to determine whether he qualifies for the appointment of counsel at public expense.

The Court canvassed Mr. Clark regarding his financial status as well as whether he had any Native American heritage; the Court found Mr. Clark indigent and ordered the Alternate Public Defender's Office appointed to represent him upon filing of a Petition.

Counsel Beach: Set forth the stipulated findings and recommendations as to Mr. Clark for the record.

Counsel Pearce: Concurred with the stipulated findings and recommendations.

Counsel Briggs: Concurred with the stipulated findings and recommendations.

The Court canvassed Mr. Clark regarding the stipulation and found that Mr. Clark made a knowing, intelligent, and voluntary waiver to his right to present evidence.

Mr. Clark and counsel Pearce were excused for the remainder of the hearing.

The Court canvassed Ms. McCafferty as to her financial status as well as whether she had any Native American heritage; the Court found that it would create an economic hardship on Ms. McCafferty if she were to retain private counsel and ordered the Public Defender's Office appointed to represent her upon filing of a Petition; the Court further found that ICWA does not apply as to Alexis.

Counsel Beach: Waived opening statement.

Counsel Riley: Waived opening statement.

The Court inquired regarding the individual named Della Baker that was in the virtual waiting room.

Ms. Williamson: Ms. Baker is the maternal grandmother and was caring for the children outside of the home for one week prior to the removal, so the Agency served her with notice of today's hearing.

The Court inquired regarding the reason Ms. Baker was served with notice of today's hearing.

Ms. Williamson: It is something that was requested by a different judicial officer.

Counsel Beach: Discussed the applicable NRS. Noted that the Agency does not seek findings against a caretaker and that Ms. Baker's presence was not required for today's hearing.

The parties further discussed the applicable NRS.

Della Baker joined the main session via video conference; the Court noted that her presence was not required for today's hearing, and Ms. Baker disconnected.

Ryan Williamson called by counsel Beach; hereto forsworn and direct examined; cross-examined by counsel Riley.

Objection by counsel Beach: calls for a legal conclusion; objection sustained.

Ms. Williamson further cross-examined by counsel Riley; redirect examined by counsel Beach; examined by the Court; redirect examined by counsel Beach.

Megan McCafferty called by counsel Riley; hereto forsworn and direct examined; cross-examined by counsel Beach.

Objection by counsel Beach: non-responsive; *the Court directed Ms. McCafferty to only answer the question that is asked.*

Ms. McCafferty further cross-examined by counsel Beach.

Counsel Beach: Presented closing argument.

Counsel Riley: Presented closing argument.

The Court set forth the following findings: continuation in the home is contrary to the welfare of the minor children; there has been regular ongoing methamphetamine use in the home by Mr. Clark with the knowledge of Ms. McCafferty; methamphetamine was left out for the children to find, and methamphetamine was used in the presence of the children; there was alleged use of methamphetamine in the home as recently as January 12, 2024, which was acknowledged by Alexis; Mr. Clark's behaviors are reported to be erratic and violent, and Ms. McCafferty is minimizing the domestic violence that has occurred in the home; Ms. McCafferty allowed Mr. Clark back in the home, and his behaviors continued, including the methamphetamine use; there were reasonable efforts made to prevent the removal of the children.

The Court addressed Ms. McCafferty to direct her to maintain communication with her newly appointed counsel.

COURT ORDERED: *See Master's Recommendations for Protective Custody*

Future Hearings set in JM1

Hearing on Petition/Adjudicatory Hearing: March 6, 2024, at 1:30 p.m.

Dispositional Hearing: March 20, 2024, at 2:00 p.m.